

HOUSE BILL 2134

By Terry

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7 and Title 68, Chapter 211, relative to
solid waste disposal.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 211, Part 8, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Exporting jurisdiction" means any county, municipality, or other
political subdivision seeking to dispose of waste in a landfill located in another
jurisdiction in this state;

(2) "Host community agreement" means a written and executed
agreement between the governing body of the exporting jurisdiction and the
governing body of the host jurisdiction that expressly authorizes the acceptance
of solid waste; and

(3) "Host county" or "host municipality" means the jurisdiction in which
the landfill or solid waste disposal facility is physically located.

(b) An exporting jurisdiction shall not dispose of, or contract for the disposal of,
solid waste in a landfill located outside its territorial boundaries unless the host county or
host municipality in which the landfill is located has entered into a host community
agreement approving such disposal.

(c) A host community agreement must:

(1) Specify the duration of the agreement and any renewal or termination
terms;

- (2) Identify the landfill or disposal facility to which the agreement applies;
 - (3) Include provisions addressing compensation or host fees, if any, payable to the host jurisdiction;
 - (4) Include provisions addressing truck routes, operating hours, environmental protections, and enforcement; and
 - (5) Be approved by resolution of each participating governing body in a public meeting.
- (d) The department shall not issue or renew any permit for a solid waste disposal facility that accepts waste from outside the host jurisdiction unless:
 - (1) The applicant provides a copy of the current host community agreement; and
 - (2) The department determines the agreement complies with this section.
- (e) This section does not apply to:
 - (1) Waste streams managed under an existing valid contract entered into prior to July 1, 2026, until such contract expires or is renewed; or
 - (2) Emergency circumstances declared by the governor or the commissioner for purposes of disaster response or public health protection.
- (f) Nothing in this section prohibits a host county or municipality from imposing additional conditions, fees, or restrictions on out-of-county waste by ordinance, resolution, or interlocal agreement.
- (g) This section applies to all contracts entered into for the disposal of solid waste on or after July 1, 2026.

SECTION 2. Tennessee Code Annotated, Section 68-211-814(b), is amended by adding the following language as a new subdivision:

No solid waste planning region or county shall approve or permit the disposal of out-of-county waste at a landfill located within its jurisdiction unless a host community agreement, as defined in Section 1 of this act, has been executed.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.